

Contracts, Background Screenings, Probation Periods & PIAA

Contract Templates

GitLab's Team Member contract templates are accessible (for reference) within GitLab only (here). The DRI for all contract templates is the Legal, Employment team. Contracts are audited and updated on a regular basis. Any suggestions or requests for changes to employment templates should be made to the Legal, Employment team and will require approval from the VP of Legal, Employment. You can read how to connect with Legal, Employment in the Handbook.

Team Member's Individual Contracts

The DRI for individual team member contracts (once a team member is hired) is the People Operations Team. Any queries about a team member's contract should go to the People Operations Team by HelpLab ticket, and the query will be directed or escalated as appropriate.

Approved changes or edits to the contract templates will be flagged to the CES team

The Director, Talent Brand & Talent Acquisition Enablement will support a review to ensure all Greenhouse tokens are correct before an updated version of the template can be added to Greenhouse for use.

Correcting an error in an issued employment contract

1. If an error is noticed, please make the Associate Manager, Candidate Experience aware.
1. The Associate Manager, Candidate Experience will assign the contract correction to a Candidate Experience Specialist, ideally to the same person, that created the already issued contract.
1. If the change is payroll relevant The Candidate Experience Specialist makes total-rewards@ gitlab.com and uspayroll@ gitlab.com or nonuspayroll@ gitlab.com aware.
1. The Candidate Experience Specialist creates a new corrected contract using above templates and adds the following sentence in: "This agreement is effective {Hire date} and supersedes the employment agreement dated {date of erroneous agreement}."
- Make a copy of the template and save it to the working documents folder on Google Drive to edit
1. The Candidate Experience Specialist creates a Cover Letter explaining the reason for the correction.
- Make a copy of the template and save it to the working documents folder on Google Drive to edit
1. Once the new contract and cover letter have been created, ping a Candidate Experience Specialist for auditing.
1. Send the audited created documents and any additional details on the correction to Legal for review.
1. Once approved by Legal stage the cover letter and new contract in DocuSign and send it for signature first to the Company signatory and subsequently to the team member.
1. Upload the signed documents to the team member's documents folder in Workday.
1. If applicable, make any necessary updates to the team member's Workday profile and email Total Rewards total-rewards@ gitlab.com and Payroll uspayroll@ gitlab.com or nonuspayroll@ gitlab.com to notify them of the changes.

Job Change Letter

If a team member changes roles at GitLab and the approval goes through Greenhouse, the process for a Job Change Letter is laid out in the Job Change Letter section on the CES Contract Processes handbook page.

If a team member changes roles at GitLab and the approval goes through Workday, the process for a Job Change Letter is laid out in the Job Change Letter section on the Promotions & Transfers handbook page.

For other instances such as a Relocation, the People Operations Team member will create a Relocation letter according to the parameters as listed in the Relocation within the Same Country section on the Relocation handbook page.

Job Change Letter Inc to Fed Entity Change

For US team members who are changing from the Federal entity to Inc, or Inc to Federal, a job change letter will need to be created. Add the below verbiage to the appropriate letter template:

- GitLab is pleased to inform you that you are receiving a [transfer OR promotion] to [GitLab Inc OR GitLab Federal, LLC] as {{JOB_TITLE}} effective as of {{START_DATE}}.

Background Screenings

GitLab uses appropriate controls to ensure that its team members, assets, customer relationships, and information are protected. To reduce these risks, GitLab will obtain and review background information of covered prospective, and, as applicable, current team members as allowed by local law.

GitLab currently contracts with Sterling Talent Solutions (currently migrating to First Advantage) to provide background screenings. For all candidates being considered for a position at GitLab, an employment history for the last 5 years and/or the three most recent employers will be verified in accordance with applicable local law (if applicable local law limits the review of employment history to fewer years and/or employers, then GitLab follows local law) and screening will be performed against various denied party lists including but not limited to the Office of Foreign Asset Control's Specially Designated Nationals and Blocked Persons List. In jurisdictions where criminal records may be reviewed, criminal records will be requested. Additional screenings may include, where applicable and in accordance with local law, digital or document-based identity verification, a search against the U.S. Department of Health and Human Services Office of Inspector General's List of Excluded Individuals/Entities and/or screening for financial related offenses and credit checks, when relevant to the position. GitLab may use the returned background information to make decisions regarding employment, where allowed by local law. No background screening will be run until a conditional offer has been made, unless local law explicitly requires otherwise.

Candidate's are required to complete their background screening before onboarding at GitLab. All necessary steps will be taken to ensure background screenings are completed before a candidate begins their employment and a candidate's start date may be adjusted to satisfy this requirement. Circumstances beyond GitLab's control may serve as exceptions to this requirement such as exigent circumstances that affect access to background information such as natural disasters, public emergencies, significant outages, and other potentially unforeseen circumstances. All exceptions will be reviewed on an individual basis. GitLab will ensure each background screening is completed and satisfactory should a candidate need to onboard before their background screening has completed due to any exception.

GitLab does not currently require subsequent background screenings, or re-screenings, for current team members beyond onboarding/pre-hire requirements. Current team members may opt-in for additional background screenings if requested to work with specific customers.

The Candidate Experience Specialists will initiate all background screenings for candidates. The Senior Background Check Specialist will initiate any applicable retroactive background screenings or requested enhanced background screenings for current team members.

Please contact the Senior Background Check Specialist at backgroundchecks@gitlab.com or submit a request in HelpLab for additional assistance or questions.

Contractors, Contingent Workers, & Temporary Service Providers

Background screenings will be completed or verified for contractors, contingent workers, and/or temporary Service providers when requiring access to orange or red data and/or utilizing a GitLab laptop unless the vendor is an approved sub-processor or has valid Third Party Risk Management review. GitLab will complete these background screenings in accordance with local law and at minimum, criminal record information (or local equivalent) will be required. However, GitLab may also review similar criteria as mentioned above. GitLab will first request proof of completed background screenings from a vendor before completing one internally. Contractors, contingent workers, and/or temporary service providers must also have a completed background screening or have provided proof of a completed background screening before onboarding and/or provisioning any access at GitLab.

Disclosure and Authorization

Candidates (and, as applicable, current team members) will receive an email to fill out the background screening application. The application will ask for personal and professional information. The application process includes signing disclosure and consent forms which explain the rights of an individual undergoing the background screening. The application process is designed to take less than fifteen minutes to complete.

Candidates should gather each previous employer's name, address, position title held, employment start and end dates, manager's name, and contact information. Details for a Human Resources contact can be entered instead of a manager's contact details. Occasionally, and where permitted by law, Sterling (currently migrating to First Advantage) will reach out to the candidate to retrieve additional documentation to act as proof of previous employment. Proof of employment can typically be provided in various ways, such as tax returns (e.g. W2s), pay stubs, LLC documentation, official company registrations, etc. In certain circumstances, the Senior Background Check Specialist may also reach out to candidates and/or team members for additional documentation.

Background screenings will act as an additional mechanism of transparency and will help to build trust with our clients.

Review Criteria for Candidates and Team Members

Reviews of background screenings are conducted by the Senior Background Check Specialist in accordance with the applicable law of the candidate's jurisdiction. The Senior Background Check Specialist will first review the report for omissions, inaccuracies, and/or discrepancies with employment, including, but not limited to, dates of employment, employer names, and/or positions held. If the report includes discrepancies related to employment, the Senior Background Check Specialist will take the necessary steps to investigate and adjudicate the discrepancies. The Senior Background Check Specialist may escalate the report, as necessary, to the Legal Employment team. Employment decisions based on the employment verification portions of the background screening report shall be finalized before any review of the criminal records information takes place.

If criminal record information has been provided, then it will be adjudicated in accordance with applicable local law. Generally, and subject to local law, criminal records are reviewed to determine if criminal convictions have a direct connection with an applicant's ability to fulfill the job duty with competence and integrity, while also considering the safety and/or security of GitLab team members, customers, vendors, and/or overall business. Decisions are made that are job related and consistent with business necessity. Arrest records are not considered during the adjudication process, nor is any criminal conviction information that is prohibited from being reviewed by applicable local law.

Probation Period

Upon joining GitLab, some team members (location-dependent, see the below table for detail about each location) will have a probationary period between 1 and 9 months. Common practice is for contracts in each country to have the maximum allowable probationary period. In case of relocation to a different country or change of contract, if a team member has continued service with GitLab (tenure with GitLab has been uninterrupted) and they have already passed the probationary period of their original location or contract, they do not need to go through the probation period of their new location or contract.

As per the onboarding process, the probation period status is added to Workday.

The People Operations Team is responsible for managing the probationary period process internally (communication with the team member, their manager, confirmation of probationary period completion, and updating Workday). In some instances, the People Operations Team may also be responsible for managing relationships with legal counsel externally on a global scale to ensure compliance and iteration.

If an exception request is made to end a probation period early, this should be escalated by the team member's manager to a skip-level and the People Business Partner/Team Member Relations Specialist via email. We will then evaluate the risk, performance and overall reason for the request. Further escalation to Legal might be necessary as well as decision making on how to proceed. There should be no expectation of approval.

Important steps during the Probation Period

For Managers

1. Managers are responsible for monitoring and specifically reviewing performance halfway through the probation period of their direct report.

1. If underperformance is an issue, or there is any hesitation regarding the successful completion of a probation period, this should be discussed immediately with Team Member Relations.

1. 28 days prior to the end of their direct reports' Probation Period, the manager will receive an email from Workday reminding them that their direct reports' probation period is coming to an end, and that there is a task in Workday for the manager to submit the outcome of the probation period.

- Note: For team members located in the Netherlands or Austria, the manager will receive an email from Workday, 14 days prior to the end of the probation period.

1. The Hiring Manager will select the appropriate probation outcome in Workday based on the team member's performance. A helpful job aid can be found here on this process.

For Team Members

1. If you have successfully passed your probation period, in addition to receiving the good news through your manager, you will also receive a probation period confirmation letter in Workday.

1. In your inbox, you can review this letter and then select Submit. This letter will then be saved in your Workday documents for future reference if needed.

Current Locations With Probationary Periods

Locations without Probation Periods

PIAA (Proprietary Information and Assignment Agreement)

GitLab strives to help its team members maintain the ability to work on projects that are unrelated to GitLab's business, including other open-source projects. Our PIAA does not grant GitLab any rights to any creations that you may make that are not related to GitLab's business or the work you do for GitLab. That is, you are free to develop those creations without requesting approval in advance from GitLab.

If your employment contract was created prior to November 2017, we have created an amendment to the PIAA agreement which can be viewed [here](#). It amends the 2A section of the PIAA. Please reach out to the People Operations team via HelpLab who will complete and stage the document for signatures. The Amendment will first be signed by the team member and then by the requisite Company signatory.

Outside Employment (Paid or Unpaid), Projects, and Potentially-Conflicting Activities

GitLab recognizes that Rest and Time Off are Productive and encourages our team members to take time to relax and avoid burnout. However, GitLab also understands that, unless an individual employment contract provides otherwise, some team members may want to engage in outside employment (paid or unpaid), projects, and/or potentially-conflicting activities during their non-working hours (collectively referred to here as "outside activities").

GitLab reminds these team members that their position with GitLab is their primary employment responsibility, and that GitLab positions are considered full-time employment and they require a team member's full effort and concentration, despite any outside activities.

In order to honor the commitment team members make when they join GitLab, including protecting GitLab's confidential information, trade secrets, and other business interests while team members are engaged in outside activities, GitLab has adopted the following policies:

Outside activities must not interfere with the team member's work performance or duties; or create an actual or apparent conflict of interest with GitLab. If outside activities lead to a team member's poor performance, abuse of leave policies, or other negative outcomes relating to their position, GitLab may discipline the team member, up to and including termination.

In line with our core value of Transparency, prior to starting outside activities that could potentially interfere with their commitments to GitLab, team members must disclose it to their manager, as noted below. GitLab will not approve outside activities that compromise a team member's ability to perform their job effectively.

Team members engaging in outside activities must comply with GitLab's Code of Business Conduct and Ethics, as well as all policies related to Conflicts of Interest, Confidentiality, Non-Competition during Employment, and the Protection of Confidential and Proprietary Information, where enforceable by applicable state or local law. Outside activities cannot involve or compete with products or services provided or under development by GitLab. Outside activities also cannot make use of any of GitLab's proprietary or confidential information, and team members cannot work in any capacity for any of GitLab's suppliers, customers, or competitors.

GitLab's Internal Acceptable Use Policy permits limited personal use of GitLab-managed assets, subject to any conflicting statements contained in individual employment contracts. Subject to such limited personal use, team members may not use GitLab's facilities, equipment, supplies, IT systems (such as computers, networks, or email), time, trademarks, brand, or reputation in connection with any outside activities.

This policy is not intended to restrict communications or actions protected or required by state, federal or other applicable law.

Approval for Outside Activities

Before beginning outside employment, side projects, or other activities, whether paid or unpaid (collectively referred to as "outside activities"), you must disclose the activity in writing to your Manager, and further escalate as needed. Approval will not be granted if GitLab determines that the proposed outside activity would be a conflict of interest under the Code of Business Conduct and Ethics or if it would compromise a team member's ability to perform their job effectively. Candidates at a certain stage in the recruiting process will also be asked to disclose outside employment, side projects, or other activities in order for GitLab to determine whether a conflict exists with their ability to perform their obligations to GitLab.

Steps as a current candidate (actively engaged in the hiring process)

1. At the reference stage, the Recruiter will ask the candidate to complete a form that asks them the following:

to disclose any outside employment, projects, or activities; and
any inventions or side projects that should be listed on the PIAA.

1. If the candidate discloses outside employment, projects, or activities in the completed form, CES will notify the hiring manager for approval and copy in Team Member Relations at teammemberrelations@gitlab.com for visibility and review to ensure consistency in application.

Information that will need to be provided to the hiring manager shall include:

- Name of the outside employment, project, or activity
- GitLab clients who are involved in the project and scope of involvement (if applicable, please include tech stack used)
- Estimated time investment per week (in hours)
- Candidate's role in the outside employment, project, or activity

1. Approval will follow the process set out for current team members. Any potential conflict of interest must be disclosed to and approved by the Chief Legal Officer in line with the Code of Business Conduct & Ethics.

1. If the candidate entered No or None CES will continue processing the application.

Steps as a current team member

1. Team member check their individual employment contract to ensure they are not prevented from engaging in outside activities.

1. Team member sends their request via email to their direct manager for approval and adds the Team Member Relations team teammemberrelations@gitlab.com in copy for visibility and to ensure consistency in application.

Information needed in the email:

- Project name (links to relevant website if available)
- Goal of the project/organization
- GitLab clients and/or team members who are involved in the project and scope of their involvement. (If applicable, please include tech stack used)

- Estimated time investment per week (in hours)
- Employment status/role in relation to the outside project (if applicable)

1. The manager will ask any additional questions if necessary. A manager may not approve a request for outside projects or activities for a variety of reasons, including team member performance or a provision in an individual employment contract which provides otherwise.

1. If the manager and Team Member Relations approves, they will then confirm this in the thread and add the applicable Director-level leader to the thread, for their review and approval. If the direct manager is also at a Director-level, they will add the next level leader (VP or C-level as appropriate) to the email thread for review and approval.

1. If a decision by the manager and Team Member Relations is made to deny, the manager will relay this to the team member, and the Team Member Relations team will save any communication in the team member's Workday Documents folder.

1. If the Director/next-level leader feels additional review and approval is needed, they will then add the next level leader (VP or C-level as appropriate) to the email thread. If this is not deemed necessary, the Director/next-level leader will respond indicating their approval.

Note: A minimum of two leaders must review all outside projects up to the E-group leader. If the E-group leader is the next level manager, the E-group leader approval or denial is sufficient. Direct manager and Director-level are the usual levels. If the direct manager is at a Director-level, an additional level must approve or deny.

1. If the next level leader (VP or C-level) and Team Member Relations team feels additional review and guidance is needed, they will add the Senior Director of Legal, Employment and any other relevant leader to the thread. Any potential conflict of interest must be disclosed to and approved by the Chief Legal Officer in line with the Code of Business Conduct & Ethics

1. If a decision is made to approve and all approvals are documented, the People Operations Team member will save the entire thread as a pdf to the team member's Workday Documents folder.

1. The People Operations Team member will then respond confirming receipt and state that the entire thread has been saved in the team member's Workday profile.

1. For team members employed in the Netherlands, The People Operations Team member will state the given in the form of the Authorization Letter. This letter must first be sent to the relevant E-group leader for signature, then to the team member. Once signed, this will be saved in the team member's Workday Documents folder.

For any approved outside activity in which the GitLab team member will use their GitLab account, this activity must be stored in a separate, personal project. All other work completed as part of the work they perform on behalf of GitLab should be stored in a GitLab namespace.

Annual Code of Business Conduct & Ethics Administration Process

Employees are required to review and acknowledge GitLab's Code of Business Conduct & Ethics (aka "CoBCE") upon starting employment at GitLab, and annually thereafter, regardless if there are any changes to the code.

The People Operations Team tracks the Code of Business Conduct & Ethics signature completion by new hires during onboarding. The Ethics & Compliance team oversees and administers the Code of Conduct refresher training, which requires employees to sign the certification on an annual basis. Completion is tracked in the related learning management platform, Level Up. signature process, which is tracked and distributed through Workday. The annual signature process usually launches in April if every year.

Contract Renewals

The below process can be used for the following:

- Fixed term contract to indefinite contract
- Fixed term contract to fixed term contract (after the initial contract expires)
- Contract update for invoice purposes due to individual incorporation of an entity

Note: In most cases this process will apply specifically for team members in the Netherlands.

When creating a new contract, if it is to be for 12 months, that timeframe is always to be written as (for example):

- Jan 1, 2010 to Dec 31, 2010
- Feb 20, 2004 to Feb 19, 2005

When renewing a contract, if it is to be for 12 months, the timeframes are at be seen as (for example):

- First 12-month contract starts on June 14, 2019. That entails that the contract ends on June 13, 2020.
- Second 12-month contract will start on June 14, 2020 and end on June 13, 2021.

1. Add the team member's contract details to the People Operations Task Tracker under the Contracts tab. On the sheet you will assign the People Operations Team member owner, if you are the owner be sure to note the end date and start the below process 2 months before the end date.

1. Take note of the team members details and reach out to the team members manager via email using the following template.

1. Once you have received confirmation on next steps from the team members line manager, be sure to save the thread under the team member's profile in Workday in the 'Approvals - Confidential' document folder.

1. Using the correct contract template from the templates folder complete with required team member details. These details can be found on the team member's Workday profile.

- As we would honour the original hire date in terms of GitLab seniority add the following sentence into the contract after the contract start date: "Your continuity of service for statutory purposes begins on the {{Original Hire Date}}."
- Do not keep the Stock Options line in the Key Terms section, unless additional shares are being given.
- Be sure to write both the Start date and Birth date of the team member in the Month DD, YYYY format to prevent confusion.
- Remove any wording regarding Probation Period if applicable.

1. When you have a completed contract be sure to allow a team member to peer review it for you. This can be done by posting the document link in the People Operations private slack channel. Indicate that you are reviewing it by using the 'Eyes' emoji.

1. Once reviewed, stage the contract for signing in Docusign.

1. Ensure that the GitLab signatory is the first to sign, followed by the team member. This can be done by selecting the assign signing order option.

1. When signed by both parties, save the contract to the team member's Workday Documents folder.

1. Update Workday to reflect the new contract information along with an end date if applicable.

1. Notify the People Operations team so that they may audit any Workday changes.

1. The People Operations Team member updates the People Operations Task Tracker confirming the contract has been completed.

Netherlands Renewal Process

1. Two months before the contract ends, HR Savvy will send an email to the People Operations Team member email address.
1. The People Operations Team member that is in charge of allocating contract renewals will assign a member of the People Operations team to complete the contract renewal process.
1. The People Operations Team member adds the team member's contract details to the People Operations Task Tracker under the Netherlands Contracts tab.
1. The People Operations Team member will follow this HelpLab Job Aid to request approval from the team member's manager two months before the team member's contract ends.
1. GitLab offers one fixed term 12-month contract to start. After the year-long fixed term contract, if the team member is in good standing, they are given an Indefinite Agreement beginning at the team member's second year with the company. If a team member has been with GitLab for over one year after their first fixed term contract finished due to a relocation, they are given an Indefinite Contract.
1. The Manager has then 2 weeks to evaluate the performance of the team member.
 - If satisfied with the performance, the manager informs the People Operations team to extend the contract for an indefinite term.
 - If there are performance concerns the manager will discuss the planned course of action with the Team Member Relations Team. The contract may end or get extended for another fixed term. The Team Member Relations Team can help with providing guidance on the messaging.
1. At least 1 month before the end of the contract, the manager informs the team member of the extension or not.
1. If a salary increase is required due to updated visa salary requirements the People Operations Team member requests approvals from the team member's manager, total rewards and finally the team member's Division's E-Group leader.
1. The People Operations Team member uploads the approval to the Workday Documents folder.
1. If the contract extension is approved, the People Operations Team member creates the contract
 - As we would honour the original hire date in terms of GitLab seniority add the following sentence into the contract after the contract start date: "Your continuity of service for statutory purposes begins on the {{Original Hire Date}}."
 - Do not keep the Stock Options line in the Key Terms section, unless additional shares are being given.
 - Be sure to write both the Start date and Birth date of the team member in the Month DD, YYYY format to prevent confusion.
 - Check whether the team member is currently paid the holiday allowance monthly. If yes, confirm with the team member whether we can update to yearly. If the team member agrees to update, ensure to update pay frequency. If no, confirm okay with Legal - Employment and ensure to add correct wording to this effect in new contract. To streamline the process all team members should receive the holiday allowance yearly.
 - Remove any wording regarding Probation Period if applicable.
 - Note: A second probation period should only be implemented if the team member's new contract reflects the start of an entirely new role. If the contract is simply a continuation of employment in the current role, a second probation period should not be applied.
 - Remove any wording regarding certificate of good conduct, as this was already requested as part of their first Netherlands contract.
1. The People Operations team member stages the contract via DocuSign for the GitLab signatory and the team member to sign. Add hr@savvy-group.eu to 'Receive a copy' once signed.

- If another temporary contract is issued follow these steps and include the mentioned message when sending the contract via DocuSign

1. The People Operations Team member uploads the signed contract to the team members Workday Documents folder.

1. The People Operations Team member updates Workday to reflect the new contract: Open the team member's Workday profile > Click on actions > Job Change > add contract. Fill in start and end date, contract type and reason (if applicable)

1. Notify another People Operations Team member so that they may audit any Workday changes.

1. The People Operations Team member updates the People Operations Task Tracker confirming the contract has been completed.

Note: A team member cannot have more than three fixed term contracts with the same employer in a row. If a fourth contract is offered by GitLab then it must be a permanent one.

The Netherlands Contract Best Practices

1. Best practice for team members in the Netherlands is to issue one 1-year Fixed term Contract prior to moving to an indefinite contract. After the completion of the 1-year Fixed term Contracts, we move to the indefinite contract.

1. GitLab is to take into consideration the entire tenure of the team member at time of relocation to determine the type of contract to create. Due to the usual 1-year tenure at GitLab prior to a team member requesting to relocate and immigrate to the Netherlands, if the team member has been at GitLab more than one year, the best practice procedure would be to give the team member an indefinite contract, with approval from their manager.

CXC Contract Renewal

CXC contracts are issued on a yearly basis, with contracts expiring after one year. CXC remains the responsible PEO for ensuring the contract renewal is completed for each team member.

- CXC will make contact with team members 2 weeks before their contracts are due to expire.
- CXC will create renewal contract and send for signing to the relevant team members.
- Once signed, CXC will send the renewed contract to People Operations.
- The People Operations Team member uploads the renewed contract to the team member's Workday Contracts & Changes folder and updates Workday to reflect the new contract.

Standard practice is to automatically renew CXC contracts. The offboarding process will apply should a team member be terminated voluntarily or involuntarily.

GitLab Inc Best Practices

GitLab, Inc with OTE

- For Relocations, Promotions, and Transfers of current team members be sure to remove the draw information as it is not applicable.